

MASTER SERVICES AGREEMENT

This MASTER SERVICES AGREEMENT, dated as of _____ (“**Effective Date**”), by and between _____ (the “**Vendor**”), with an office located at _____, and PAYSPYRE FINANCIAL INC. (“**PaySpyre**”), with an address for service at 100-2033 Gordon Dr, Kelowna, BC. V1Y 3J2.

WHEREAS:

- A. PaySpyre is in the business of providing an enterprise-level loan management and financial services;
- B. The Vendor wishes to engage PaySpyre to provide the services described in this agreement (the “**Services**”), and PaySpyre has agreed to such engagement upon the terms and conditions provided herein;

In consideration of the mutual promises herein, the Vendor and PaySpyre agree to be bound by this Agreement, including without limitation the following Schedules, and all documents issued by PaySpyre to the Vendor or entered into by the parties with respect to the Services (collectively, the “**Agreement**”):

- Schedule A: Terms and Conditions
- Schedule B: Form of Statement of Work
- Schedule C: Signature Card
- Schedule D: Privacy Policy

IN WITNESS WHEREOF, the parties have caused this Agreement to be executed as of the Effective Date by their duly authorized representatives.

Per:

Name:
Position:

PAYSPYRE FINANCIAL INC.

Per:

Name: David Wilson
Position: Director & CEO

SCHEDULE A: TERMS AND CONDITIONS**1. DEFINITIONS**

- 1.1. **"Affiliate"** means, with respect to a given entity, another entity that controls, is controlled by, or is under common control with the first entity. For purposes of this Agreement, "control" means possessing, directly or indirectly, the power to direct or cause the direction of the management, policies or operations of an entity, whether through ownership of voting securities, by contract or otherwise.
- 1.2. **"Aggregate Data"** means Data that has been aggregated in a manner that does not reveal any Personal Information and cannot reasonably be used to identify the source of such data.
- 1.3. **"Confidential Information"** means:
 - (a) all information related to the business of the disclosing party ("Discloser"), including all information related to its Representatives, clients, counterparties, or other relationships, including Personal Information, that Recipient or its Representatives has had or will have access to during the term of this Agreement;
 - (b) all information derived from the information described in (a); and
 - (c) the terms and existence of this Agreement. Confidential Information does not include information that:
 - (i) is in the public domain at the time of its use or disclosure through no fault of the Recipient or its Representatives;
 - (ii) was already lawfully in the possession of or demonstrably known by the Recipient, and not to the Recipient's knowledge subject to an obligation of confidentiality;
 - (iii) is independently developed by the Recipient without use of or reference to the Confidential Information; or
 - (iv) becomes known by the Recipient from a third party and, to the Recipient's knowledge, is not subject to an obligation of confidentiality.
- 1.4. **"Credentials"** means any user accounts, passwords and other authentication credentials associated with use of the Platform.
- 1.5. **"Personal Information"** means all information defined as "personal information," "personal data" or any similar term under applicable federal or provincial consumer privacy laws.
- 1.6. **"Recipient"** means the party that has received Confidential Information or has had Confidential Information received on its behalf or in relation to its role under this Agreement.
- 1.7. **"Representatives"** means a party's Affiliates and its and their respective officers, directors, employees, consultants, attorneys, accountants, agents, contractors, subcontractors, and other representatives.
- 1.8. **"Services"** means the services and Work Product provided by PaySpyre under this Agreement, including the Platform.
- 1.9. **"Use"** means to use, retain, disclose, sell, support, maintain, update, upgrade, enhance, create derivative works from, further develop, display, distribute, modify, customize, copy, compute, load, run, host, or compile.
- 1.10. **"Vendor Data"** means all data that the Vendor may calculate, submit, upload, email, transmit, process, or otherwise make available through the Platform.
- 1.11. **"Work Product"** means all work in progress, Service deliverables, procedures, developments, drawings, notes, documents, information and materials made, conceived or developed by PaySpyre alone or with others which result from or relate to the Services.

2. SERVICES

- 2.1. **Statement of Work** PaySpyre will perform and provide the Services in accordance with the description as set forth in the Statement of Work (“**SOW**”), attached here as Schedule B. Each SOW will be governed by the terms and conditions of this Agreement and will specify, among other terms that the parties deem relevant:
- (i) a description of the Services that PaySpyre will provide; and
 - (ii) the fees that the Vendor will pay and the schedule for payment. In the event of any conflict between the terms and conditions this Agreement will take precedence except as expressly and unambiguously stated otherwise in the applicable SOW.
- 2.2. **Change Order** From time to time, a Vendor may request changes to the Services. Upon such request, the parties will negotiate in good faith on a change order to incorporate any changes to the SOW, including any appropriate additional fees or changes to the fees. No Change order will be binding unless it has been accepted in writing by both parties.
- 2.3. **Engagement of Third-Party Partners** PaySpyre may, at its sole discretion, engage third-party partners to assist PaySpyre in providing the Services. Any fees and costs assessed to PaySpyre by these third-party partners will form part of the fees for Services payable by the Vendor.
- 2.4. **Acting as Lender.** In providing the Services, PaySpyre will be listed as “Administrator”, as well as jointly with the Vendor as “Lender” on any loan agreements prepared by PaySpyre. The Vendor hereby appoints PaySpyre, as agent to exercise all powers and perform all obligations of the Lender under such loan agreements, on behalf of the Vendor. In particular, PaySpyre may act on behalf of the Lender to provide collection services, as applicable, however, the Vendor remains liable for any claims under such loan agreements, and PaySpyre’s liability is limited according to the terms of this Agreement.

3. PLATFORM

- 3.1. PaySpyre offers the PaySpyre platform (the “**Platform**”) as an aid to facilitate the arrangement of loan agreements to finance the provision of products, goods and services between the Vendor and its customers.
- 3.2. PaySpyre grants the Vendor a limited, non-exclusive, non-transferable, non-sublicensable right to access and use the Platform made available by PaySpyre in compliance with this Agreement.
- 3.3. PaySpyre may improve, modify, add or remove functions or features to or from the Platform from time to time, with or without notice to the Vendor.
- 3.4. Except as expressly permitted under this Agreement, the Vendor will not itself, nor will it permit any other party to:
- (i) reproduce, modify, translate, adapt or create derivative works based upon the Platform;
 - (ii) reverse engineer, decode, decompile, disassemble or otherwise attempt to access or derive the source code or architectural framework of the Platform;
 - (iii) access the Platform for purposes of benchmarking or developing, marketing, selling or distributing any product or service that competes with or includes features substantially similar to the Platform;
 - (iv) take any action that imposes an unreasonable or disproportionately heavy load on the Platform or its infrastructure or that negatively affects the ability of others to access or use the Platform;
 - (v) rent, lease, lend, sell or sublicense the Platform or otherwise provide access to the Platform as part of a service bureau or similar fee-for-service purpose; or

- (vi) use the Platform in any way that does not comply with all applicable laws and regulations.
- 3.5. The Platform depends on the Internet, including networks, cabling, facilities and equipment that is not in PaySpyre's control; accordingly:
- (i) Any representation made by PaySpyre regarding access performance, speeds, reliability, availability, use or consistency of the Platform is on a "commercially reasonable efforts" basis;
 - (ii) PaySpyre cannot guarantee any minimum level regarding such performance, speed, reliability, availability, use or consistency;
 - (iii) data, messages, information or materials sent over the Internet may not be completely private, and the Vendor's anonymity is not guaranteed; or
- 3.6. PaySpyre reserves the right to suspend, restrict or terminate the Vendor's access to the Platform in the event that:
- (i) the Vendor's use of the Platform disrupts the availability of the Platform to other users;
 - (ii) the Vendor notifies PaySpyre that the Platform has been accessed by an unauthorized third party;
 - (iii) the operation or efficiency of the Platform or our or any third party's equipment or network is impaired by the Vendor's use of the Platform;
 - (iv) any amount is past due from the Vendor to PaySpyre; and
 - (v) PaySpyre has received a third party complaint which relates to the Vendor's use or misuse of the Platform.
- PaySpyre will make commercially reasonable efforts to limit suspension to the minimum extent and duration necessary. PaySpyre further reserves the right to suspend or revoke access to the Platform if the Vendor violates this Agreement or Privacy Policy.
- 3.7. The Vendor acknowledges and agrees that:
- (i) all use of the Platform is at the Vendor's own risk;
 - (ii) the Platform may contain links to other websites, which are provided solely as a convenience to the Vendor and the inclusion of any such link does not imply endorsement, investigation or verification by PaySpyre of such website or the information contained therein;
 - (iii) the Platform provided under this Agreement is provided on an "as is" and "as available" basis.
- 3.8. PaySpyre makes no conditions, warranties or representations about the suitability, usability, security, quality, capacity, performance, availability, timeliness or accuracy of the Platform. PaySpyre expressly disclaims all conditions, warranties and representations, express, implied or statutory, including implied conditions or warranties of merchantability, fitness for a particular purpose, durability, title and non-infringement, whether arising by usage of trade, by course of dealing, by course of performance, at law, in equity, by statute or otherwise howsoever.
- NOTWITHSTANDING ANY OTHER PROVISION OF THIS AGREEMENT, IN NO EVENT WILL PAYSPLYRE OR ITS AFFILIATES, OR ITS CONTROLLING PARTIES, AGENTS, EMPLOYEES, SUPPLIERS, RESELLERS AND DISTRIBUTORS (COLLECTIVELY, IN THESE CAPITALIZED SECTIONS, "WE" OR "US") BE LIABLE FOR ANY DIRECT, INDIRECT, SPECIAL, INCIDENTAL, CONSEQUENTIAL OR PUNITIVE DAMAGES, OR ANY OTHER DAMAGES OR LOSSES WHATSOEVER, INCLUDING DAMAGES FOR LOSS OF PROFITS, GOODWILL, OPPORTUNITY, EARNINGS, USE OR DATA, ARISING DIRECTLY OR INDIRECTLY FROM OR RELATED TO THIS AGREEMENT OR THE USE, OR NON-USE OF THE PLATFORM OR ANY SOFTWARE, REGARDLESS OF THE CAUSE OF ACTION AND EVEN IF ONE OR MORE OF US HAVE BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES OR LOSSES, INCLUDING DAMAGES OR LOSSES ARISING FROM OR IN ANY WAY RELATED TO THE FOLLOWING: (I) ANY LOSS OR DAMAGE TO DATA ARISING DIRECTLY OR

INDIRECTLY OUT OF USE OR NON-USE OF THE PLATFORM OR RELATED COMPONENT; (II) DELAYS, ERRORS, INTERRUPTIONS, MISTAKES, OMISSIONS, NON-DELIVERY, INCORRECT DELIVERY, OR DEFECTS ON OR RELATED TO THE PLATFORM. WITHOUT RESTRICTING THE FOREGOING, IF CIRCUMSTANCES ARISE IN WHICH THE VENDOR OR ANOTHER PARTY IS ENTITLED TO RECOVER DAMAGES FROM US, THE AGGREGATE LIABILITY OF US FOR DAMAGES IS LIMITED TO THE AMOUNT PAID TO US BY YOU THROUGH THE PLATFORM DURING THE SIX-MONTH PERIOD PRECEDING THE CIRCUMSTANCES IN WHICH SUCH LIABILITY ARISES.

SOME JURISDICTIONS PROHIBIT THE DISCLAIMER OF CERTAIN WARRANTIES OR CONDITIONS OR THE LIMITATION OF CERTAIN TYPES OF LIABILITY. IN SUCH CIRCUMSTANCES, TO THE EXTENT THAT SUCH PROHIBITIONS PROHIBIT ANY EXCLUSIONS AND LIMITATIONS IN THIS AGREEMENT, SUCH EXCLUSIONS AND LIMITATIONS WILL NOT APPLY STRICTLY TO THE EXTENT NECESSARY TO MAKE THIS AGREEMENT CONSISTENT WITH SUCH PROHIBITIONS.

4. PAYMENT & TAXES

- 4.1. As full consideration for the performance of the Services contemplated by a SOW, the Vendor will pay PaySpyre the amount agreed upon and specified in such SOW.
- 4.2. Invoices for payment provided by PaySpyre to the Vendor are due upon receipt, and failure to pay the invoice within ten (10) days of receipt will be subject to a penalty of 2% per month on the outstanding balance.
- 4.3. If an invoice remains outstanding for more than thirty (30) days from receipt by the Vendor, PaySpyre reserves the right to deduct the outstanding amount from payments collected by PaySpyre on active loan agreements under the Vendor's loan portfolio.
- 4.4. Any and all amounts payable hereunder by the Vendor are exclusive of any value-added, sales, use, excise or other similar taxes (collectively, "**Taxes**"). The Vendor shall be solely responsible for paying all applicable Taxes. If PaySpyre has a legal obligation to collect any Taxes, the Vendor will reimburse PaySpyre upon Invoice by PaySpyre.
- 4.5. Invoices, and/or adjustments will be provided by email to the Vendor at any email address provided as in Schedule B of this Agreement.
- 4.6. All payments will be made in Canadian dollars, unless otherwise indicated in this Agreement, or subsequent duly executed amendments to this Agreement.

5. MARKETING ACTIVITIES

- 5.1. The Vendor gives PaySpyre permission to use the Vendor's name and other identifying information as part of PaySpyre's sales and marketing activities.
- 5.2. The Vendor may request permission to use PaySpyre's name and other identifying information as part of the Vendor's sales and marketing activities. Prior to permission being granted, the proposed Vendor sales and marketing activities are to be reviewed and approved by PaySpyre. PaySpyre's permission may be unreasonably withheld.
- 5.3. The Vendor agrees to provide reference calls, case study and video testimonial upon request by PaySpyre.
- 5.4. The Vendor will not take any action that could reasonably be expected to damage the reputation of PaySpyre or its Affiliates. Without limiting the generality of the foregoing, the Vendor will not directly or indirectly, in any capacity whatsoever, publicly (including by or through any social media) make any disparaging, denigrating, defamatory or other critical statements, written, oral or otherwise, or

cause or encourage any other person to make any such statements, concerning PaySpyre's business, or any of its respective directors, officers or employees. Notwithstanding the foregoing, nothing in this section will preclude the Vendor from making truthful and accurate statements or disclosures that are required by applicable laws or legal process.

6. VENDOR RESPONSIBILITIES & ACKNOWLEDGEMENTS:

- 6.1. The Vendor will be solely responsible for obtaining, configuring and maintaining any hardware, network connectivity and third-party software required for the Vendor to access the Platform, including computers, mobile devices, operating systems, web browsers and storage devices.
- 6.2. The Vendor will be solely responsible for protecting the confidentiality of Credentials. In the event that the Vendor becomes aware of any unauthorized access to or use of the Platform, the Vendor will promptly give written notice to PaySpyre of such unauthorized access or use and make reasonable efforts to eliminate such unauthorized access or use. The Vendor will at all times implement appropriate security policies and procedures and access control methodologies to safeguard access to and use of the Platform. All such measures shall comply with prevailing industry standards but in no case consist of less than reasonable care. The Vendor acknowledges that PaySpyre is not responsible for any losses, damages, costs, expenses or claims that result from stolen or lost passwords.
- 6.3. The Vendor is responsible for keeping their contact, payment and billing information up-to-date and accurate, including a properly functioning and reachable email address.
- 6.4. The Vendor is responsible for appointing a contact person (the "Primary Contact") to be the main point of contact between PaySpyre and the Vendor, and who will have authority to communicate and act on behalf of the Vendor for all matters relating to this Agreement and the Services provided hereunder. In the situation where such Primary Contact does not have signing authority for the Vendor, the Primary Contact will arrange for signatures of the appropriate parties. From time to time, the Vendor may substitute its Primary Contact by providing written notice to PaySpyre.
- 6.5. The Vendor will provide to PaySpyre a copy of a digital signature of the Vendor's authorized signatory(ies), which upon acceptance of a loan application by the Vendor through the Platform, will be used by PaySpyre to prepare the electronic loan documents, as required for PaySpyre to provide the Services under this Agreement.
- 6.6. While the recommendations provided on any loan agreement submitted over the Platform have been assessed by PaySpyre, the Vendor acknowledges that they should only commit to such loan agreements for which the Vendor is able to financially bear the risk of a loss, considering all other financial commitments of the Vendor.

7. VENDOR DATA

- 7.1. All information, data, and other materials accessible or calculated through the Platform ("Data") are the sole responsibility of the party from whom such materials originated. The Platform may provide access to or rely on Data from third parties, and such third parties, and not PaySpyre, are entirely responsible for such Data. The Vendor, and not PaySpyre, are solely responsible for: (i) Vendor Data; and (ii) giving all required notices and obtaining all necessary consents before submitting Vendor Data through or to the Platform.
- 7.2. PaySpyre acknowledges and agrees that, as between the Vendor and PaySpyre, the Vendor owns all right, title and interest in and to Vendor Data. The Vendor hereby grants PaySpyre and its service

provides a worldwide, royalty-free, non-exclusive license to use, reproduce, modify, adapt, create derivative works from, perform, display, distribute, make and have made Vendor Data as necessary for PaySpyre to provide access to the Platform and Services to the Vendor.

- 7.3. The Vendor confirms, represents, and warrants to PaySpyre that the Vendor has all rights, titles and interests, as well as the power and authority necessary, to grant the license to Vendor Data
- 7.4. The Vendor acknowledges and agrees that PaySpyre may collect or generate Aggregate Data in connection with providing the Vendor with access to the Platform, and the Vendor hereby grants PaySpyre and its service providers a perpetual, irrevocable, worldwide, royalty-free, fully-paid-up, non-exclusive, sublicensable, transferable license to use, reproduce, modify, adapt, create derivative works from, publicly perform, publicly display, distribute, make and have made Aggregate Data for any lawful purpose.
- 7.5. PaySpyre will maintain commercially reasonable administrative, physical and technical safeguards to maintain and protect Vendor Data (including, without limitation, Confidential Information) in PaySpyre's custody or control; provided, however, that PaySpyre will not be responsible for loss of data transmitted on networks not owned or operated by PaySpyre.
- 7.6. The Vendor agrees that PaySpyre may, without notice or liability, monitor use of the Platform and monitor, review and retain Vendor Data if PaySpyre believes in good faith that such activity is reasonably necessary to provide the Platform to customers, ensure adherence to or enforce the terms of this Agreement; comply with any laws or regulations; respond to any allegation of illegal conduct or claimed violation of third party rights; or protect PaySpyre or others.
- 7.7. The Vendor acknowledges and agrees that PaySpyre's management and delivery of the Platform to the Vendor may involve transmission and storage of Vendor Data and other Content to select service providers, including cloud service providers, which may be located outside of Canada, and therefore may be subject to the laws and lawful disclosure requirements of the jurisdictions(s) where Vendor Data and other Content is transmitted or stored. The Vendor further acknowledges and agrees that Vendor Data may be subject to "caching" or other technical processing or transmission policies and procedures by PaySpyre or at intermediate locations on the Internet.
- 7.8. The Vendor acknowledges that it may not have access to Vendor Data through PaySpyre or the Platform following the expiration or termination of this Agreement.
- 7.9. PaySpyre does not have any obligation to censor or review any of the Vendor Data, to censor or review any Third-Party Content, or to monitor use of the Platform. However, if PaySpyre receives a complaint relating to use of the Platform by the Vendor, the Vendor acknowledges and agrees that PaySpyre may, in its sole and absolute discretion and without notice or liability, investigate the complaint, restrict, suspend, or terminate any service involved, or remove Vendor Data from PaySpyre servers.

8. INTELLECTUAL PROPERTY

- 8.1. The Vendor acknowledges and agrees that, as between PaySpyre and the Vendor, PaySpyre owns all right, title and interest (including all Intellectual Property) in and to the Platform and Work Products, and all improvements, enhancements or modifications thereto, including all Data therein (except for Vendor Data).
- 8.2. The Vendor will not remove, obscure or modify in any way any copyright or trademark notices or other notices or disclaimers that appear within the Platform.

- 8.3. Except where expressly stated otherwise, all right, title and interest in and to the Platform and all Content, source code, processes, designs, technologies, URLs, domain names, marks and logos forming any part of the Platform (collectively, "PaySpyre Content") is fully vested in PaySpyre, PaySpyre's licensors or PaySpyre's suppliers and are protected by applicable copyrights, trademarks, patents, trade secrets or other proprietary rights and laws. The Vendor agrees that PaySpyre Content is licensed subject to the terms of this Agreement, including the disclaimers and limitations of liability herein. Nothing in the Vendor's use of the Platform grants you any right, title or interest in or to PaySpyre Content except the limited right to use the Platform as set out in this Agreement. Unless otherwise expressly authorized by PaySpyre in writing, the Vendor agrees not to:
- (i) copy, modify, deep link, rent, lease, loan, sell, assign, sublicense, grant a security interest in or otherwise transfer any right or interest in PaySpyre Content;
 - (ii) distribute, create a derivative work of, reverse engineer, reverse assemble or otherwise attempt to discover the source code, of PaySpyre Content, to the maximum extent that such prohibition is permitted by applicable law;
 - (iii) remove any proprietary notices or labels on or in PaySpyre Content; or
 - (iv) allow any other person or entity to engage in any of the foregoing.
- 8.4. Content accessed or available through the Platform or the Internet may be owned by parties other than the Vendor or PaySpyre (collectively, "**Third Party Content**") and may be protected by applicable copyrights, trademarks, patents, trade secrets or other proprietary rights and laws. Nothing in the Vendor's use of the Platform grants the Vendor any right, title or interest in or to this Third Party Content except for the limited right to use the Platform as set out in this Agreement. The Platform may contain links to Third Party Content on websites operated by parties other than the Vendor or PaySpyre ("**Third Party Platforms**"). PaySpyre is under no obligation to verify the accuracy of the contents on Third Party websites, and PaySpyre does not endorse, warrant, promote or recommend any services or products that may be offered by or accessed through such Third Party websites or the operators of them.
- 8.5. In the event that the Vendor provides any business suggestions to PaySpyre, the Vendor hereby grants PaySpyre and its services providers a perpetual, irrevocable, worldwide, royalty-free, fully-paid-up, non-exclusive, sublicensable, transferable license to use, reproduce, modify, adapt, create derivative works from, publicly perform, publicly display, distribute, make and implement such business suggestions into PaySpyre's business model or use such business suggestion for any lawful purpose, without credit or compensation to the Vendor.

9. CONFIDENTIALITY

9.1. Non-Disclosure

- (a) PaySpyre will comply with the terms of the PaySpyre's Privacy Policy, as attached here as Schedule D. PaySpyre may make reasonable modifications to this Privacy Policy from time to time, which will not be considered an amendment to this Agreement.
- (b) Each party agrees that it will use the Confidential Information provided by the other party only as necessary to exercise its rights and discharge its obligations under this Agreement and for no other purpose without the prior written consent of the Discloser. Neither party shall disclose to a third-party Confidential Information of the other party. The Receiver shall protect Confidential Information of the Discloser using the same degree of care it uses to protect the confidentiality of

its own Confidential Information of like nature, but no less than a reasonable care. The foregoing obligations shall not apply to any Confidential Information that:

- (i) can be demonstrated to have been publicly known at the time of the Discloser's disclosure of such Confidential Information to the Receiver;
- (ii) becomes part of the public domain or publicly known, by publication or otherwise, not due to any unauthorized act or omission by the Receiver;
- (iii) can be demonstrated to have been independently developed or acquired by the Receiver without reference to or reliance upon such Confidential Information;
- (iv) is provided to the Receiver on a non-confidential basis by a third party who is under no obligation to the Discloser to keep the information confidential; or
- (v) is required to be disclosed by law; provided, however, that the Receiver will take reasonable actions to minimize such disclosure and promptly notify the Discloser, to the extent permitted by law, so that the Discloser may take lawful actions to avoid or minimize such disclosure.

For further clarity, the Confidential Information referenced in this section will include, but is not limited to, information relating to the terms of this Agreement, as well as business operations, third-party contracts, pricing data, and production details of each party.

9.2. **Return of Confidential Information** Upon conclusion of this Agreement or any SOW, or upon written request from Discloser, Recipient will return to Discloser all Confidential Information in Recipient's possession or within its control. Alternatively, with Discloser's prior consent, Recipient may destroy such Confidential Information, provided that the Confidential Information is:

- (i) destroyed in accordance with applicable law, rule or regulation; and
- (ii) is rendered permanently unreadable or undecipherable, in which case an officer of Recipient will certify to Discloser that all such Confidential Information has been so destroyed.

9.3. **Non-Solicitation** During the term that Services and/or the Platform is being provided under this Agreement, and for a period of three (3) years thereafter, Vendor will not, directly or indirectly, solicit for employment any person employed or contracted by PaySpyre or any of its affiliates that have provided Services under this Agreement.

10. INDEMNITY

10.1. **PaySpyre Indemnity** PaySpyre will indemnify, hold harmless, and at the Vendor's request, defend the Vendor and its Representatives against claims, liabilities, damages, losses and expenses, including attorneys' fees, arising out of or in relating to any Services provided under this Agreement with respect to (a) any claim based on the gross negligence or willful misconduct of PaySpyre, and/or (b) any claim by a third party against the Vendor and/or its Representatives alleging that any Service, the results of any Service, or any other products or processes provided under this Agreement, infringes a patent, copyright, trademark, trade secret or other proprietary right of a third party. However, PaySpyre shall have no obligation to indemnify the Vendor from any losses to the extent they arise from: (i) use of the Platform in any manner by the Vendor (or through Vendor facilities) that does not comply in all material respects with this Agreement or applicable laws or regulations; (ii) use of the Platform by the Vendor (or through Vendor facilities) in combination with any hardware or software not provided or approved by PaySpyre; (iii) modifications to the Platform by or on behalf of the Vendor; or (iv) loss, corruption or disclosure of any Vendor Data. In the event that any part of the Platform is likely to become the subject of a third party claim, PaySpyre may, at its

sole discretion: (1) procure a license necessary for the Vendor to exercise the rights granted by PaySpyre under this agreement; (2) modify or replace the Platform in PaySpyre's sole discretion to avoid or limit a third party claim; or (3) terminate this Agreement and provide a pro rata refund of the fees paid by the Vendor to PaySpyre for the unused portion of the Initial Term or Renewal Term,. This Section states the Vendor's sole and exclusive remedies for third party claims arising from use of the Platform.

- 10.2. **Vendor Indemnity** The Vendor will indemnify, hold harmless, and at PaySpyre's request, defend PaySpyre and its Representatives against claims, liabilities, damages, losses and expenses, including attorneys' fees, arising out of or in relating to any claim arising from the acts of the Vendor and/or its Representatives.
- 10.3. **Procedure** Prior to making a claim under this Section, the indemnified party shall:
- (i) give the indemnifying party prompt written notice of any indemnified claim; provided, however, that failure of the indemnified party to give such prompt written notice shall not relieve the indemnifying party of any obligation to indemnify pursuant to this Section 10, except to the extent the indemnifying party has been prejudiced thereby;
 - (ii) cooperate fully with the indemnifying party, at the indemnifying party's expense, in the defense or settlement of any indemnified claim; and
 - (iii) give the indemnifying party sole and complete control over the defense or settlement of any indemnified claim; provided, however, that any settlement must include a complete release of the indemnified party without requiring the indemnified party to make any payment or bear any obligation.

11. TERM & TERMINATION

- 11.1. The term for this Agreement will commence on the Effective Date and continue in effect for a one (1) year term (the "**Initial Term**"). Thereafter, this Agreement will automatically renew for successive one (1) year terms (each, a "**Renewal Term**"), unless either party gives written notice of non-renewal to the other party at least thirty (30) days before the conclusion of the Initial Term or applicable Renewal Term. PaySpyre reserves the right to change prices for the Platform and/or Services for any upcoming Renewal Term by providing notice of such change via email to the Vendor at least thirty (30) days before the commencement of the applicable Renewal Term. If any SOW is in effect at the time of the expiration or termination of this Agreement, then as it applies to such SOW only, the term of this Agreement shall be extended until the expiration or termination of such SOW.
- 11.2. Notwithstanding anything to the contrary, this Agreement or any SOW may be terminated as follows:
- (i) by the non-breaching party upon a material breach of this Agreement or applicable SOW by the other party, which breach is not cured within thirty (30) days after receipt of written notice from the non-breaching party, provided that, in the event such breach relates only to a specific SOW, termination shall be limited to such SOW; or
 - (ii) by either party in the event the other party becomes insolvent or bankrupt; becomes the subject of any proceedings under bankruptcy, insolvency or debtor's relief law; has a receiver or manager appointed; makes an assignment for the benefit of creditors; or takes the benefit of any applicable law or statute in force for the winding up or liquidation of such party's business.

11.3. The Vendor may terminate this Agreement for any or no reason upon thirty (30) days prior written notice to PaySpyre; provided, however, that the Vendor will remain obligated for all amounts committed during the Initial Term of any SOW and all fees already paid shall be non-refundable.

11.4. Upon expiration or termination of this Agreement for any reason:

- (i) the Vendor will immediately cease all use of the Platform;
- (ii) all amounts owed by the Vendor to PaySpyre under this Agreement or an SOW shall become immediately due and payable; and
- (iii) each party shall immediately cease all use of the other party's Confidential Information and return or destroy all copies of such Confidential Information that are within its custody or control.

12. **NOTICE:** All notice to be given under this Agreement:

- (a) by PaySpyre to the Vendor will be deemed to have been effectively and validly given if delivered or sent to any of the contact particulars then listed in your account on the Platform;
- (b) by the Vendor to PaySpyre will only be deemed to have been effectively and validly given if in writing and delivered or submitted to the following address:

By Mail to: **PaySpyre Financial Inc.**
100-2033 Gordon Dr.,
Kelowna, BC. V1Y 3J2

By Email to: **vendor@payspyre.com**

A notice delivered personally or by courier will be deemed to have been received on the next business day following the date of such delivery. A notice delivered by email will be deemed to have been received on the next business day following the date of transmittal.

13. REPRESENTATIONS AND WARRANTIES

13.1. **General** PaySpyre and Vendor each represents and warrants to the other that:

- (a) it has the necessary power and authority to enter into this Agreement;
- (b) the execution and performance of this Agreement have been authorized by all necessary corporate or institutional action;
- (c) entry into and performance of this Agreement will not conflict with any provision of law or the certificate of incorporation, bylaws or comparable organizational documents of such party; and
- (d) it will comply with all applicable laws, rules or regulations applicable to its performance under this Agreement.

13.2. **Warranties** PaySpyre represents and warrants that:

- (a) all Services will be completed in a professional, workmanlike manner;
- (b) PaySpyre will use commercially reasonable efforts to provide the Platform in accordance with this Agreement;
- (c) PaySpyre and all of its Representatives involved in the Services, and all Services themselves, will comply, including in the utilization of the Services as contemplated hereunder, with all applicable laws, rules, regulations, orders of any governmental agency; and
- (d) PaySpyre has all rights, titles, licenses, intellectual property, permissions and approvals necessary in connection with its performance under this Agreement to grant the Vendor the rights granted hereunder.

14. ADDITIONAL TERMS

- 14.1. **Entire Agreement** This Agreement is the entire agreement between the parties concerning PaySpyre's provision of Services to the Vendor. This Agreement supersedes, and its terms govern any prior agreements, proposals, or other communications, oral or written, between the parties with respect to the Services.
- 14.2. **Amendment** This Agreement may only be changed by mutual written agreement of authorized representatives of the parties.
- 14.3. **Assignment** Neither party may assign this Agreement, or sublicense, assign or delegate any right or obligation hereunder, by operation of law or otherwise without the prior written consent of the other party; provided, however no such consent shall be required for assignment of this agreement in conjunction with a merger, acquisition, corporate reorganization or sale of all or substantially all of such party's assets. This Agreement shall be binding upon and enure to the benefit of the parties hereto and their respective successors and permitted assigns. PaySpyre reserves the right to unreasonably withhold consent.
- 14.4. **Independent Contractor** PaySpyre is an independent contractor for all purposes, and you agree that no joint venture, partnership, fiduciary, employment or agency relationship exists between us and you as a result of this Agreement, and nothing in this Agreement will be construed to create an agency or employment relationship between the Vendor and PaySpyre or PaySpyre's Representatives. Except as outlined herein, PaySpyre is responsible for all costs and expenses incident to performing its obligations under this Agreement and PaySpyre will provide its own supplies and equipment
- 14.5. **Severability** If any provision of this Agreement will be held to be invalid or unenforceable under applicable law, then such provision will be construed, limited, modified or, if necessary, severed to the extent necessary to eliminate its invalidity or unenforceability, without in any way affecting the remaining parts of this Agreement.
- 14.6. **Governing Law** This Agreement will be interpreted in accordance with and be governed by the laws of the Province of British Columbia and the laws of Canada applicable therein.
- 14.7. **No Waiver** The failure of either party to require strict performance by the other party of any provision hereof will not affect the full right to require such performance at any time thereafter, nor will the waiver by either party of a breach of any provision hereof be taken or held to be a waiver of the provision itself.
- 14.8. **Force Majeure** Neither party will be liable for any failure to perform under this Agreement to the extent due to any act of God, fire, casualty, flood, war, strike, lock out, failure of public utilities, injunction or any act, exercise, assertion or requirement of any governmental authority, epidemic, destruction of production facilities, insurrection, Internet access or related problems, network intrusions or denial of service attacks or any other cause beyond the reasonable control of the party invoking this provision.
- 14.9. **Counterparts** This Agreement may be executed in one or more counterparts, each of which will be deemed an original, but all of which together will constitute one and the same agreement.
- 14.10. **Survival** Any provision that, by its terms, is intended to survive the expiration or termination of this Agreement shall survive such expiration or termination, including section 5.4 (non-disparagement), section 6.2 (non-disclosure), section 7.1 (data integrity), section 7.2 (license (adaptive works)), section 7.4 (license (derivative works)), section 8.5 (license (business suggestions)), section 9.1 (confidentiality), section 10.2 (Vendor's indemnity).

- 14.11. **Limitation Period** Any cause of action the Vendor may have with respect to this Agreement must be commenced within one year after the claim or cause of action arose, or it will be barred.
- 14.12. **Enforceability** All contracts between The Vendor and PaySpyre completed electronically will be deemed for all legal purposes to be in writing and legally enforceable as a signed written agreement.
- 14.13. **Interpretation** In this Agreement, (i) the captions and headings are for convenience only and do not constitute substantive matter and are not to be construed as interpreting the contents of this Agreement, (ii) the word "including", the word "includes" and the phrase "such as", when following a general statement or term (whether or not non-limiting language such as "without limitation" or "but not limited to" or other words of similar import are used with reference thereto), is not to be construed as limiting, and the word "or" between two or more listed matters does not imply an exclusive relationship between the matters being connected, and (iii) all references to Platform addresses or URLs will also include any successor or replacement Platforms containing substantially similar information as the referenced Platform(s).

SCHEDULE B: FORM OF STATEMENT OF WORK

Vendor:		Signatory:	
Address:		Phone:	
		Email:	

Description		Fees
Set-up	Customized Financial Program Design	\$3,500.00 + applicable taxes
	3 Customized Credit Products	
	3 Vendor & Provider User Accounts	
	System Set-up	
	Remote Training: Sales & System	
System Access	Loan Origination System (user access)	\$7.00 per open account per month + applicable taxes
	Loan Management System (user access)	
	Automatic Payments (monthly – direct from borrower bank account)	
	Borrower Online Portals	
	Borrower Online Payments (direct from borrower bank account)	
	Borrower Contracts (loan & pre-authorized debit)	
	Borrower E-Signature (loan & pre-authorized debit contracts)	
	Borrower Automated Notifications (Email and/or SMS)	
Professional Services	Application Underwriting & Risk Assessment	
	Application Verification	
	Bank Account Verification	
	Collections Support	
	System Support & Training	
	Monthly Follow-up Calls – (6 months, up to 30 mins each)	
	Monthly Reporting	
Add-ons	3 Additional Credit Products (up to 6 total)	\$0.00 + applicable taxes
	3 Additional User & Provider Accounts (up to 6 total)	

Terms	
Effective Date:	- Anticipated System Access Date: 10 Business days from effective date
Initial Term:	12 months

Payment		Amount
Set-up	One-Time Fee, due at Signing	\$3,500.00
System Access	Calculated, invoiced, and paid monthly	To be calculated & invoiced monthly
Professional Services		
Add-ons	One-Time Fee, due at Signing	\$ 0.00
Sub-Total		\$3,500.00
Taxes		\$ 175.00
Total Due at Signing		\$3,675.00

Payment Distribution – Interest Bearing Accounts		
Payments Received	Principal Collected	To be distributed: 100% to the Vendor
	Interest Collected	To be distributed: 50% to Vendor and 50% to PaySpyre.
	Fees Collected	To be distributed: 100% to PaySpyre

Payment Distribution – Non-Interest Bearing Accounts		
Payments Received	Principal Collected	To be distributed: 93% to Vendor & 7% to PaySpyre
	Interest Collected	N/A – No interest collected on 0% accounts
	Fees Collected	To be distributed: 0% to Vendor & 100% to PaySpyre

Reporting & Invoicing	
Reporting & Invoicing	Monthly - Processed on the last day of every month, sent out within 3 business days from beginning of the next month.

Payment Due & Deposits Due
Funds due to the Vendor will be deposited into the bank account provided in the Vendor Application and will be NET of amounts owed to PaySpyre. Deposits will be initiated on or before the 10 th of every month for the previous months' collections. (Or the following business day). Should there be funds still owing to PaySpyre they are due upon receipt.

This Statement of Work (the “**SOW**”) is made and entered into as of the Effective Date set forth above by and between PaySpyre Financial inc. (“**PaySpyre**”) and the Vendor identified above (“**Vendor**”), pursuant to and incorporating herein by reference the terms and conditions of the Master Services Agreement (the “**Agreement**”), dated , by and between the Vendor and PaySpyre. Capitalized terms used but not otherwise defined herein will have the meanings ascribed to them in the Agreement.

In the event of a conflict between the terms and conditions of this SOW and the terms and conditions of the Agreement, the terms and conditions of this SOW will govern with respect to the tasks and activities described herein.

Authorized Persons	
In addition to the Signatory PaySpyre personnel will accept direction only from the following individual(s)	
Primary Contact Name	Primary Contact Position / Title
Primary Contact Phone	Primary Contact Email Address
Secondary Contact Name	Secondary Contact Position / Title
Secondary Contact Phone	Secondary Contact Email Address

IN WITNESS WHEREOF, each of the undersigned has caused this SOW to be executed by its duly authorized Representative as of the date first above written.

Per:

Name:
Position:

PAYSPYRE FINANCIAL INC.

Per:

Name: David Wilson
Position: Director & CEO

SCHEDULE C: SIGNATURE CARD

Business Information			
Company Legal Name			
Company Trade Name <i>(if Applicable)</i>			
Contact Name <i>(First and Last Name)</i>		Position <i>(Job Title)</i>	
Company Address <i>(Street Address, PO Box, RR, Apartment/Building, Floor Suite)</i>			
City/Town	Province/Territory	Postal Code	Country Canada
Email Address		Business Phone	
Signature Card			
Legal Entity Name		Date (MM/DD/YYYY)	
Full Name (First Name, Middle Initial, Last Name and Suffix)			
Position (Job Title)			
Signature - Sign within the box below (IMPORTANT: PLEASE DO NOT TOUCH ANY LINES)			

SCHEDULE D: PRIVACY POLICY**Last updated: December 20th, 2022**

At PaySpyre Financial Inc. ("PaySpyre"), we are committed to providing our clients with exceptional service. As providing this service involves the collection, use and disclosure of some Personal Information about our clients, protecting their Personal Information is one of our highest priorities. Accordingly, PaySpyre has established this Personal Information Protection Policy (the "Privacy Policy") in compliance with British Columbia's Personal Information Protection Act (PIPA), which outlines the principles and practices we will follow in protecting clients' Personal Information. Our privacy commitment includes ensuring the accuracy, confidentiality, and security of our clients' Personal Information and allowing our clients to request access to, and correction of, their Personal Information.

This Privacy Policy applies to PaySpyre, and to any service providers collecting, using or disclosing Personal Information on behalf of PaySpyre. We reserve the right to amend this Privacy Policy in our sole discretion at any time by posting a revised version on the Platform. If you continue to use the Platform after the effective date of each amendment, you will be conclusively deemed to have accepted such amended version of this Privacy Policy.

Definitions

Personal Information – means information about an identifiable individual. Personal information does not include contact information (described below).

Contact information – means information that would enable an individual to be contacted at a place of business and includes name, position name or title, business telephone number, business address, business email or business fax number. Contact information is not covered by this Privacy Policy or PIPA.

Aggregate Data – means information that has been aggregated in a manner that does not reveal any Personal Information and cannot reasonably be used to identify the client as the source of such data.

Platform – means collectively, the platform operated by PaySpyre at www.payspyre.com, and all associated subdomains, as made available from time to time.

Privacy Officer – means the individual designated responsibility for ensuring that complies with this Privacy Policy and PIPA.

Cookies – Cookies are files with a small amount of data, which may include an anonymous unique identifier. Cookies are sent to your browser from a website and stored on your computer's hard drive.

Log Data – Log Data may include information such as your computer's Internet Protocol ("IP") address, browser type, browser version, the pages of our Site that you visit, the time and date of your visit, and the time spent on those pages and other statistics.

Policy 1 – Collecting Personal Information

1.1 Unless the purposes for collecting Personal Information are obvious and the client voluntarily provides his or her Personal Information for those purposes, we will communicate the purposes for which Personal Information is being collected, either orally or in writing, before or at the time of collection.

1.2 We will only collect information from our clients that is necessary to fulfill the following purposes:

- To verify identity;
- To verify creditworthiness, including but not limited to instant bank verification;
- To identify client preferences;
- To understand the financial needs of our clients;
- To open and manage an account and provide access to PaySpyre's Platform;
- To deliver requested products and services, including but not limited to loan agreements;
- To send Platform notifications and status updates;
- To send out membership information;

- To ensure a high standard of service to our clients;
- To meet regulatory requirements; and
- To collect and process payments.

1.3 We use cookies to collect information. You can instruct your browser to refuse all cookies or to indicate when a cookie is being sent. However, if you do not accept cookies, you may not be able to use some portions of our Site.

1.4 We collect Log Data information that your browser sends whenever you visit our Site.

Policy 2 – Consent

- 2.1 We will obtain client consent to collect, use or disclose Personal Information (except where, as noted below, we are authorized to do so without consent).
- 2.2 Consent can be provided orally, in writing, electronically, through an authorized representative, through the Platform, or it can be implied where the purpose for collecting using or disclosing the Personal Information would be considered obvious and the client voluntarily provides Personal Information for that purpose.
- 2.3 Consent may also be implied where a client is given notice and a reasonable opportunity to opt-out of his or her Personal Information being used for mail-outs, the marketing of new services or products, notifications and the client does not opt-out.
- 2.4 Clients may withhold or withdraw their consent for PaySpyre Financial to use their Personal Information in certain ways, except in those circumstances where the Personal Information is necessary to provide the service or product, or the withdrawal of consent would frustrate the performance of a legal obligation.
- 2.5 We may collect, use or disclose Personal Information without the client's knowledge or consent in the following limited circumstances:
- When the collection, use or disclosure of Personal Information is permitted or required by law;
 - In an emergency that threatens an individual's life, health, or personal security;
 - When the Personal Information is available from a public source (e.g., a telephone directory);
 - When we require legal advice from a lawyer;
 - For the purposes of collecting a debt;
 - To protect ourselves from fraud; and
 - To investigate an anticipated breach of an agreement or a contravention of law
- 2.6 You acknowledge and agree that we may collect or generate Aggregate Data in connection with access to the Platform and/or providing the client a particular service or product, and the client hereby grants PaySpyre and its service providers consent to use, reproduce, modify, adapt, create derivative works from, publicly perform, publicly display, distribute, sell, make and have made Aggregate Data for any lawful purpose.

Policy 3 – Using and Disclosing Personal Information

- 3.1 We will only use or disclose client Personal Information where necessary to fulfill the purposes identified at the time of collection or for a purpose reasonably related to those purposes such as:
- To facilitate the arrangement and implementation of loan agreement(s), which may include (but is not limited to) disclosure to third-party providers to complete bank verifications and obtain bank account data;
 - To conduct client surveys in order to enhance the provision of our services;
 - To contact our clients directly about products and services that may be of interest;
- 3.2 We require those service providers and third-parties engaged by PaySpyre to agree to use your Personal Information only for the purposes for which it is provided to them, and to protect the privacy of your Personal Information in a matter consistent with this Privacy Policy.
- 3.3 Our Site may contain links to other sites that are not operated by us. If you click on a third-party link, you will be directed to that third party's site. We strongly advise you to review the Privacy Policy of every site you visit.

PaySpyre has no control over and assumes no responsibility for the content, privacy policies, or practices of any third-party sites or services.

- 3.4 We may disclose or sell Aggregate Data to other persons or third-parties, in our sole discretion.
- 3.5 Except as otherwise outlines in this Privacy Policy, we will not use or disclose client Personal Information for any additional purpose or sell Personal Information unless we obtain consent to do so.

Policy 4 – Retention Policy

- 4.1 If we use client Personal Information to make a decision that directly affects the client we will retain that Personal Information for at least one year so that the client has a reasonable opportunity to request access to it.
- 4.2 Subject to policy 4.1, we will retain client Personal Information only as long as necessary to fulfill the identified purposes or a legal or business purpose.
- 4.3 We may permanently retain Aggregate Data for future use.
- 4.4 We will store your Personal Information in Canada.

Policy 5 – Ensuring Accuracy of Personal Information

- 5.1 We will make reasonable efforts to ensure that client Personal Information is accurate and complete where it may be used to make a decision about the client or disclosed to another organization.
- 5.2 Clients may use the Platform to correct their Personal Information in order to ensure its accuracy and completeness.
- 5.3 If the Personal Information is demonstrated to be inaccurate or incomplete, we will correct the information as required or request that the Client provide corrected information.

Policy 6 – Securing Personal Information

- 6.1 We are committed to ensuring the security of client Personal Information in order to protect it from unauthorized access, collection, use, disclosure, copying, modification or disposal or similar risks.
- 6.2 We employ reasonable security safeguards appropriate to the sensitivity of the Personal Information in our possession or under our control in order to protect that information from unauthorized access, collection, use, disclosure, copying, modification or disposal or similar risks. Only those persons who need to have access to your Personal Information in order to carry out their duties with respect to the uses set out above will have access to your Personal Information. Nevertheless, security risks cannot be eliminated and PaySpyre cannot guarantee that your Personal Information will not be used or disclosed in ways not otherwise described in this Privacy Policy.
- 6.3 We will continually review and update our security policies and controls as technology changes to ensure ongoing Personal Information security.

Policy 7 – Providing Clients Access to Personal Information

- 7.1. Clients have a right to access their Personal Information, subject to limited exceptions, including:
 - Aggregate data
 - solicitor-client privilege;
 - disclosure would reveal Personal Information about another individual; and/or
 - health and safety concerns.
- 7.2. A request to access Personal Information must be made in writing and provide sufficient detail to identify the Personal Information being sought.

- 7.3. Upon request, we will also tell clients how we use their Personal Information and to whom it has been disclosed if applicable.
- 7.4. We will make the requested information available within 30 business days, or provide written notice of an extension where additional time is required to fulfill the request.
- 7.5. A minimal fee may be charged for providing access to Personal Information. Where a fee may apply, we will inform the client of the cost and request further direction from the client on whether or not we should proceed with the request.
- 7.6. If a request is refused in full or in part, we will notify the client in writing, providing the reasons for refusal and the recourse available to the client.

Policy 8 – Questions & Complaints: The Role of the Privacy Officer or designated individual

- 8.1. The Privacy Officer is responsible for ensuring PaySpyre's compliance with this Privacy Policy and the Personal Information Protection Act.
- 8.2. Clients should direct any complaints, concerns or questions regarding PaySpyre's compliance in writing to the Privacy Officer. If the Privacy Officer is unable to resolve the concern, the client may also write to the Information and Privacy Commissioner of British Columbia.

Contact PaySpyre's Privacy Officer at: privacy@payspyre.com